the provisions of subsection (c) of section 3 of the Trading with the Enemy Act relative to sending, or taking out of, or bringing into, or attempting to send, take out of, or bring into the United States any letter, writing, or tangible form of communication, except in the regular course of the mail. * * * And said Secretary of the Treasury is hereby authorized and empowered to issue licenses to send, take, or transmit out of the United States anything otherwise forbidden by said subsection (c) and give such consent or grant such exemption in respect thereto as is not inconsistent with law or to withhold or refuse the same.

5. Paragraph (3) of T.D. 50536 (6 F.R. 6807) dated December 24, 1941, as modified by T.D. 50763 (7 F.R. 9478) issued by the Acting Secretary of the Treasury and approved by the President August 14, 1942, provides as follows:

I hereby designate the Governor of the Panama Canal to act as the agency of the Secretary of the Treasury to administer and to issue licenses (except licenses to send, take, or transmit out of the United States any letter, writing or tangible form of communication intended for or to be delivered, directly or indirectly, to an enemy or ally of enemy) in respect of the authority vested in the Secretary of the Treasury under Article XI of said Executive Order relative to sending, or taking out of, or bringing into, or attempting to send, take out of, or bring into, the Canal Zone any letter or other writing or tangible form of communication except in the regular course of the mail. The authority conferred by this subparagraph (3) may, in the discretion of the Governor of the Panama Canal and by his direction, be exercised also by and through any official or officials of the Canal Zone designated by the Governor of the Panama Canal for that purpose, and the Governor of the Panama Canal may from time to time revoke any designation previously made by him and make any new designation.

III. Governor's Regulations

Pursuant to the authority conferred by sections 11 and 13 of Executive Order No. 2729–A dated October 12, 1917, and T.D. 50763 approved August 14, 1942, the following regulations are hereby prescribed for the enforcement of the provisions of the statute and order quoted above in the Canal Zone:

§ 29.1 *Governor's regulations.* (a) Every person arriving in the Canal Zone from any foreign country (except persons in the service of the United States Government or the Government of any nation other than Japan, Germany, Italy, Bulgaria, Roumania, Hungary and Albania, when such persons are travelling on official busines of their governments) shall be required to declare to customs officers, any letters or other tangible form of communication, carried on his persons or in his baggage, or otherwise brought with him or under his control.

(b) Customs officers examining arriving passengers and baggage shall, in addition to the usual customs examination, make a particular search to discover any letters or other tangible forms of communication and shall examine any such letters or other forms of communication so declared, or which may be found on the persons or in the baggage of such passengers, or which may have been brought into the Canal Zone otherwise than in the regular course of the mails.

(c) If it appear that any letter or other tangible form of communication is being brought into the Canal Zone with intention to evade or violate the law, or if it appear that the effect of bringing such letter or other form of communication into the Canal Zone would be inimical to the interests of our Government, or in the interests of its enemies, the customs officer shall detain any person having such letter or communication in his possession or under his control, and immediately report the facts to the Chief of Customs, for appropriate action.

(d) If it appear that any letter or other tangible form of communication is being brought into the Canal Zone without intention to evade or violate the law, and that the effect of bringing such letter or other form of communication into the Canal Zone would not be inimical to the interests of our Government or in the interests of its enemies, the Chief of Customs may license the bringing of such letter or other form of communication into the Canal Zone, in which case there shall be placed thereon the license, with the date, the name of the port, and the initials of the Chief of Customs or other authorized officer; and such letter or other form of communication may then be released provided there are affixed thereto the appropriate United States or Canal Zone postage stamps if the transmittal of the letter or other communication outside the mails is of such nature that the laws of the United States or of the Canal Zone require the use of such stamps.

(e) Any person to whom a license is refused by the Chief of Customs may appeal from such decision to the Governor, through the Chief, Division of Civil Affairs, stating all the facts relied upon to show that the decision of the Chief of Customs should be reversed.

(f) Customs officers shall require every person departing from the Canal Zone (except persons in the service of the United States Government or of the Government of any nation other than Japan, Italy, Germany, Bulgaria, Hungary, Roumania and Albania, when such persons are travelling on official business of their governments) to declare any letters or other tangible form of communication carried on his person, or contained in his baggage or otherwise brought with him or under his control. When such action is deemed necessary, customs officers shall also search the person and baggage of such persons departing from the Canal Zone for any letter or other form of communication.

(g) If any letter or form of communication be found which is not covered by a license issued pursuant to section XI of E.O. 2729–A or T.D. 50536 as modified by T.D. 50763, or other proper authority, the customs officers shall take possession of it, and deliver it to the Chief of Customs at the port from which the letter was to be taken out of the Canal Zone, for disposition.

(h) If upon investigation the Chief of Customs is satisfied that such letter or other form of communication was being taken out of the United States without any intention to violate or evade the law, and if such letter or other form of communication is not intended for or to be delivered to an enemy or ally of an enemy, and without any intention to injure the interests of the United States, then he may grant a license for the taking of such letter out of the Canal Zone as provided in section XI of E.O. 2729–A or T. D. 50536 as modified by T. D. 50763, or he may cause the letter to be surrendered for posting in the regular mails, in which event he shall collect a corresponding amount of postage from the person in whose possession or control it was found, and shall affix postage stamps on the envelope and cause it to be posted in the regular mails.

(i) If such letter or other form of communication is intended for, or to be delivered to an enemy or an ally of an enemy, and a license therefor has not been issued pursuant to proper authority, the Chief of Customs shall hold it in his possession until he is instructed concerning its disposition. If the Chief of Customs finds on investigation that such letter or other form of communication is being taken out of the Canal Zone with intention to violate or evade the law, or if the effect of taking it out would be to injure the interests of the United States or to advance the interests of its enemies, he shall sieze such letter or other form of communication and detain the person in whose possession it was found, or who had it under his control, and shall report the facts for appropriate action.

(j) In connection with the examination of imports and exports for customs and control purposes, cus ms officers shall be alert to detect any letter or other tangible form of communication brought into or intended to be taken out of the Canal Zone, contrary to law, and if such be found, shall take possession of it and submit it to the Chief of Customs for disposition.

(k) These restrictions apply also to the officers and crews of ships and aircraft, and to company and consignee's mail. Upon arrival of ship or aircraft, all company or consignee's mail and other forms of communication in the possession of the officers or crew shall first be presented to the customs for examination. Prior to the departure of ship or aircraft, company and consignee's mail shall be submitted to the customs for examination and after inspection such mail shall be sealed and stamped with an appropriate notation indicating that its departure is licensed. Similarly, pursers and ships' agents shall deliver to customs officers, all communications mailed on board ships, with a corresponding amount of postage, and the Chief of Customs shall cause such communications to be posted in the regular mail.

(l) Licenses to take or send from the Canal Zone any letter or other tangible form of communication otherwise than in the regular course of the mails may be granted, if such letter or other form of communication is not inimical to the interests of the United States or is not intended for, or to be delivered to an

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